

07 NCAC 04R .0201 is proposed for amendment as follows:

07 NCAC 04R .0201 PURPOSE

(a) ~~The State Historic Preservation Officer (SHPO) assists applicants~~ Applicants seeking for state ~~State~~ or federal funding, licenses, ~~or permits~~ permits, or approval in developing ~~projects~~ undertakings ~~that are environmentally sound~~ with respect to historic, archaeological, and architectural resources shall seek assistance from the HPO and OSA, as staff to the State Historic Preservation Officer (SHPO) and the North Carolina Historical Commission, pursuant to this Section. ~~by providing comments early in the project planning to help applicants avoid project delays, and by informing them of the federal and state laws requiring their compliance.~~

(b) ~~The Director, Division of Archives and History, as SHPO establishes environmental review procedures pertinent to historical, archaeological (prehistoric, historic, and underwater), and architectural resources in North Carolina. When federally involved projects are reviewed, the Archaeology and Historic Preservation Section acts as the staff of the SHPO; when state involved projects are reviewed, the section acts as the staff of the North Carolina Historical Commission.~~

(c) ~~Projects are received through the State Clearinghouse from various federal, state, municipal and county agencies and planning boards, and directly from applicants.~~

(d) ~~All projects received by the SHPO are reviewed for their possible effect on historically, architecturally, or archaeologically significant structures, sites, districts, or objects. All projects affecting the submerged lands of the State of North Carolina are reviewed to determine the effect on submerged cultural resources.~~

History Note: Authority G.S. 113A-4(2); 121-8; 121-9; 121-12(a); 121-23; 143B-62; 42 U.S.C. 4321; 54 U.S.C. 302301; 302303; 36 C.F.R. 800.